

Administrative Law

Two topics:

Nondelegation

Judicial deference

Judicial Deference

Chevron Deference

Two steps:

- 1) Is the statute ambiguous?
- 2) If so, was the agency interpretation reasonable?

Loper Bright Enterprises v. Raimondo

603 U.S. 369 (2024)

Twism Enterprises v. Board of Registration for Professional Engineers & Surveyors

223 N.E.3d 371 (Ohio 2022)

King v. Mississippi Military Department

245 So. 3d 404 (Miss. 2018)

Public Water Supply Co., Inc. v. Dipasquale

735 A.2d 378 (Del. 1999)

In Re Application of Alamo Solar I, L.L.C.

235 N.E.3d 372 (Ohio 2023)

State-level examples:

Chevron-like deference: Alabama, Georgia, Hawaii, Kentucky, Massachusetts, Pennsylvania, West Virginia

Legislative rejection of Chevron: Arizona, Idaho, Indiana, Nebraska, Tennessee, Wisconsin

Judicial rejection of Chevron: Arkansas, Kansas, Michigan, Virginia

Scaling for Deference

Key

De novo = 0

A court will never consider the agency’s interpretation in determining the meaning of a statute.

Skidmore = 1

A court can consider agency expertise in determining whether they should allow for an agency’s expertise to substitute for its own.

Chevron-lite = 2

A stricter version of *Chevron* where courts have leeway in substituting their own interpretations even after finding reasonableness.

Chevron = 3

Two-step model of *Chevron*.

Chevron-plus = 4

A court is not required to find reasonableness in order to defer.

Source: Christopher J. Walker & Neena Menon, *Chevron’s 51 Imperfect Solutions*, 2024 Wis. L. Rev. 1585 (2024)

What might justify a rule
requiring courts to defer to agency
interpretations?

What might justify a rule
requiring courts to *not* defer to
agency interpretations?

Separation of powers at state level

Elected judiciary

Governors and nonunitary executives

State legislature

Interest groups and local government

Class Schedule and Reading Assignments

Thursday's reading assignment is now the final reading assignment.

Apr. 21, 2026 - Amendment Procedures

~~Pgs. 1133-1160~~

Apr. 23, 2026 - Makeup Class - Review Session

~~Pgs. 1182-1196~~

Evaluations

Local Government

**Benefits of local government
power?**

**Drawbacks of local government
power?**

Same kind of federalism?

How is state <-> local relationship

different than federal <-> state relationship?

City of Dayton v. State

87 N.E.3d 176 (Ohio 2017)

Dwagfys Manufacturing, Inc. v. City of Topeka

443 P.3d 1052 (Kan. 2019)

Cooperative Home Care, Inc. v. City of St. Louis

514 S.W.3d 571 (Mo. 2017)

Ferry v. City of Montpelier

296 A.3d 749 (Vt. 2023)

Alaska Trappers Ass'n v. City of Valdez

548 P.3d 332 (Alaska 2024)